

Court No. - 3

Case :- WRIT - C No. - 30273 of 2022

Petitioner :- Ashish Kumar Verma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Kiran Kumar Arora

Counsel for Respondent :- C.S.C.,Kartikeya Saran,Sanjai Singh

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard Sri K.K. Arora, learned counsel for the petitioner, learned Standing Counsel for the State-respondents, Sri Vinayak Ranjan Pandey holding brief of Sri Kartikey Saran, learned counsel for respondent no. 4 and Sri Umanand Shukla, learned counsel for respondent no.2-Bank.

The petitioner had purchased House/Property No. B-309 SG-I, Major Dhyan Chand Nagar Sports Goods Complex, Scheme, Meerut by way of sale certificate registered on 25.7.2020 in the office of Sub-Registrar, Sadar-III, Meerut. The aforesaid property was purchased by the petitioner only free from those encumbrances as provided in list-I and not free from encumbrances as provided in list-II annexed to the aforesaid sale certificate.

We have perused the aforesaid sale certificate and list I and II appended thereto and we find that the property in list "encumbrances freed" from the electricity dues of ex-owner with respect to the property in question has not been provided. We also find that Clause 4.3 (f) of the U.P. Electricity Supply Code, 2005 provides for joint and severe liability of outstanding electricity dues.

Therefore, in view of the terms of sale certificate in question and Clause 4.3(f) of the U.P. Electricity Supply Code, 2005, no mandamus can be issued to the respondents to provide electricity connection/supply on the aforesaid premises of the petitioner without payment of outstanding dues.

For the reasons aforesated, we do not find any merit in this writ petition. Consequently, the writ petition is **dismissed**.

Order Date :- 27.1.2023

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